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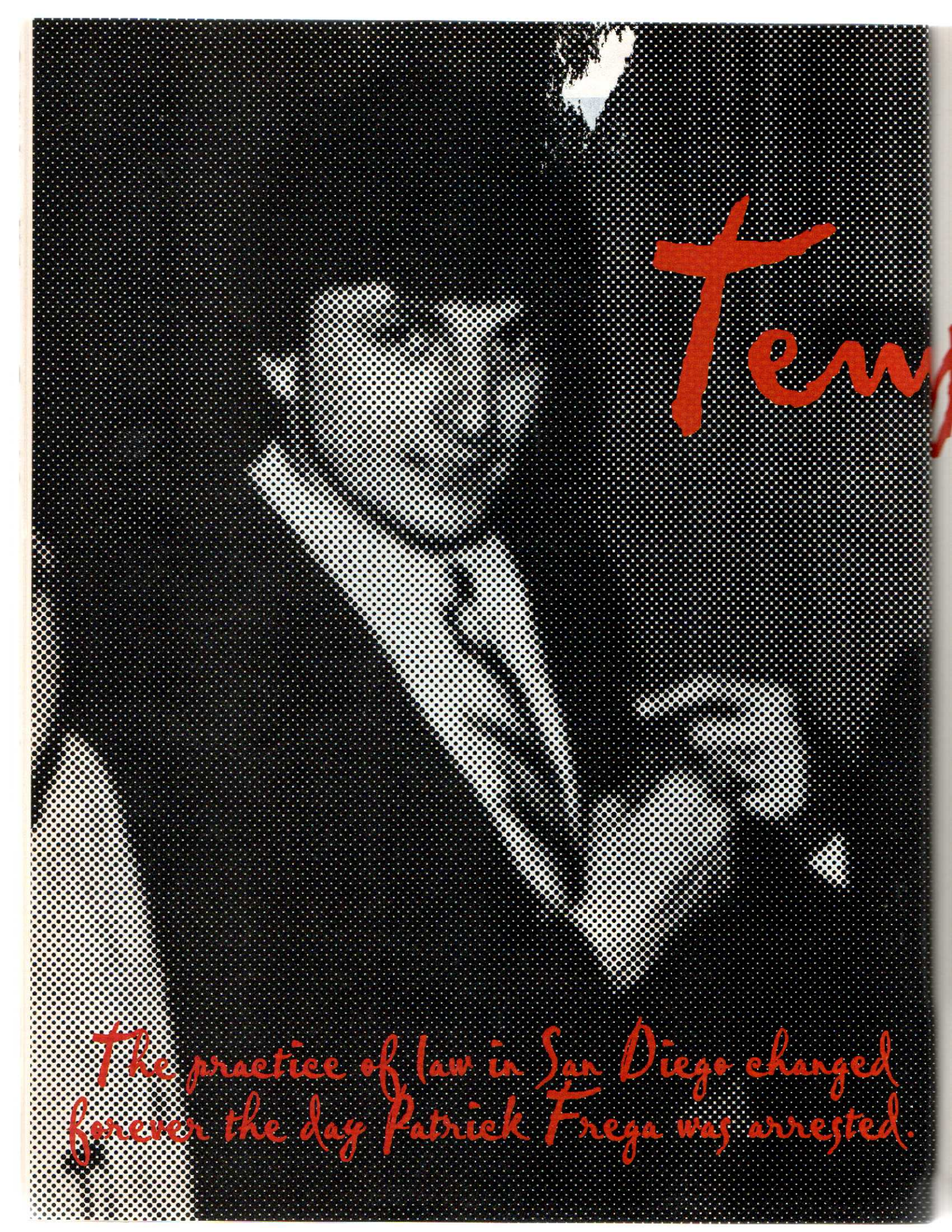


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The practice of law in San Diego changed forever the day Patrick Frega was arrested.

Imprisoning Justice

By Brae Carlen

ON THE OPENING day of his own criminal trial, Patrick Frega tried his best to look plain. He left his elegant suits hanging in the closet, his silk handkerchiefs folded in the drawer, and his contact lenses floating in their case. His dark hair, normally swept into a low pompadour, fell straight down over his ears. The 51-year-old attorney came to court in a light-gray suit and black-rimmed glasses. He gave the appearance of a man who prefers to go unnoticed.

Most of the crowd in the courtroom knew otherwise. Frega's physical bearing—six feet three with large hands and a rough complexion—had always set him apart. Until his indictment on racketeering charges this year, Frega was one of San Diego's most prominent trial lawyers. Now he stood accused of bribing three judges with \$100,000 in gifts and favors. Frega had been brought to trial by a zealous U.S. Attorney's office, a newspaper article, and a friend who turned on him. But he had also been sabotaged by his own ego and excesses.

The outside trappings of the case—the car payments Frega made, the dinner cruises he arranged, the health club memberships he paid for—eclipsed a larger and subtler problem. The Frega case forced an entire legal community to question its own behavior. The very things it prided itself on—camaraderie, informality, and the presumption of integrity—had created a perfect milieu for corruption. By the time the trial was over, it became clear that not everyone had been playing by the same rules.

Frega was found guilty of racketeering and mail fraud in October. The verdict ended an agonizing epoch for the San Diego legal community that began in 1991, when the state Commission on Judicial Performance looked into the financial disclosure statements of more than two dozen of the city's judges. Since then, observers say, there's been a breakdown in civility and cordiality. Fraternization, especially between judges and lawyers, is now risky business. Judges lament their isolation and attorneys mourn the friendships they've lost. Overall

attendance at professional events has dropped off. Even the Blackstone Ball, the premier social outing of the San Diego County Bar Association, is dying. In 1988 the event was a sell-out, drawing 1,600 lawyers, judges, and their spouses. Last year the ball sold just 250 tickets. Only two judges attended.

Perhaps such changes were inevitable. A new crop of younger, more diverse lawyers has come in. There's more competition for less business, which always guarantees a certain amount of snarling. Maybe the good old days and the good old boys were perched on the edge of obsolescence, just waiting for a shove.

But regardless of timing or reason, a seismic shift has occurred in the local legal community. And behind this shift stands Patrick Frega, whose brashness brought him to the top, and then tipped him over.

WHEN FREGA began his practice in the early 1980s, San Diego was a big city with a small, close-knit civil bar. The practice of law was viewed as a gentlemanly art, something to be revered and safeguarded. Opposing counsel took each other straight on and never sought a cheap advantage. Judges and lawyers attended the same seminars and parties—their friendships were not uncommon or concealed. Reputations mattered, and everyone relied on an unspoken code of honor to keep the scales balanced.

"We used to pride ourselves on the fact that this wasn't L.A.," comments one attorney. "The judges had a feel for who the members of the bar were. You didn't have to enter the courtroom as a blank slate."

Frega was a member of the inner sanctum, one of a couple dozen plaintiffs attorneys who tried the big cases and won the big awards. He was politically active in legislative campaigns, and in 1988 he served on the board of the California Trial Lawyers Association. He belonged to the club, all right, but he was never really one of the boys.

"Pat was always a loner," recalls one colleague. "He didn't socialize with other lawyers or show up at the lawyer bars." A fitness devotee who watched his diet, Frega didn't smoke or drink. Booze was still in fashion back then, particularly when the trial lawyers got together for their monthly dinner meetings and numerous award ceremonies. Frega usually attended, except when defense attorneys were scheduled to be there—he didn't believe in acting chummy with adversaries outside the arena.

"You always knew where you stood with Pat," observes plaintiffs attorney



Left: In happier times, Patrick Frega, left, with Judge James Malkus. Above: Malkus during his criminal trial.



Craig McClellan. "His world was clear. You were either on his side or against him." Others describe Frega as a crusader. For a local reporter, Frega once recounted his impassioned behavior during a showing of *Class Action*. "My poor wife was so embarrassed [that] she had to go sit on the other side of the theater because I was yelling at the screen. I said, 'Look at that dirtbag! That's what they do!' There were some people in the theater saying, 'Will you keep quiet?' I said, 'I'll keep quiet. I'll put you away too! You probably work for them!' I mean, it was embarrassing. I finally caught myself [and asked,] 'What the hell am I doing?'"

Frega liked to discuss trial tactics and was fanatically devoted to his practice—the hours he worked made other trial attorneys look like slackers. But Frega lacked the refinement of many of his colleagues. He wore expensive clothes but drank out of the water pitcher at dinner events. He boasted of his martial arts prowess and stocked his reception area with copies of *Soldier of Fortune* magazine. It was all part of the tough-guy persona he cultivated. He even kept his New Jersey accent.

Frega is the product of an Italian working-class family in Newark, a pedigree he is proud of. His mother worked in a bakery goods outlet. His father was an alcoholic. His kid brother served time for loan fraud, tax violations, and bringing

**"We used to
pride ourselves
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a loaded gun into a federal courthouse. But "Patsy" (Frega's given name, which he changed to Patrick to avoid ridicule) was the one who made good.

In 1963 he enlisted in the U.S. Marine Corps and trained at Camp Pendleton near San Diego. He served in Vietnam, where he suffered shrapnel wounds to both legs. His military service left him with a limp, a Purple Heart, and bragging rights that sometimes strained credulity.

After Vietnam Frega attended college in New Jersey and law school in

Florida. He worked briefly as house counsel for the American Insurance Company. Years later he described insurance defense attorneys as "heartless warriors equipped with unlimited resources." Privately, though, he had worse names for them.

Frega was admitted to the California bar in 1979, and in 1981 he opened a small practice in downtown San Diego. Having no local connections, he began showing up at the seminars and trials of Brian Monaghan, one of San Diego's most prominent attorneys. Finally Monaghan approached him. "Pat told me he was observing certain [trial] attorneys in San Diego so he could learn a few things," recalls Monaghan, who began sending small cases over to Frega. "He was always aggressive—digging, pushing, and shoving."

Eventually the two men became friends who traded cases. "I never asked for or received a referral fee," Monaghan says. "But on St. Patrick's Day he always sent me something. One year it was a green derby; another time I got a pair of rubber leprechaun shoes."

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Malkus: AP Photo, Denis Poroy

Both men belonged to a group of trial lawyers that regularly met over dinner to talk shop. Frega picked up the check "more often than he should have," recalls one of the attorneys. Frega sent wedding gifts and baby presents to colleagues, and bottles of Dom Perignon to those who had won big verdicts. Dennis Dorman is still impressed by the huge Neiman-Marcus gift basket he received from Frega in 1990, when Dorman was named Civil Trial Lawyer of the Year by the San Diego Consumer Trial Attorneys.

"It came with a handwritten note from Pat that said, 'Congratulations—you deserve it,'" Dorman recalls. "He was the only attorney in town who acknowledged [the award] like that. I didn't know him well, and he had nothing to gain from me. I remember remarking to my wife what a class act this guy was."

Frega specialized in personal injury, laboring in the vineyards of soft-tissue damage. His first significant verdict was in 1983, when he represented a San Diego detective beaten with a baseball bat by a pool-hall bouncer. In his closing statement Frega described his client, who retired from the police force with psychological problems, as "an emotional vegetable" who had been "raped of his manhood." Frega asked the jury for \$7 million. They gave him \$8 million. (The award was later reduced to \$1.4 million.)

Frega prepared exhaustively for that trial. He sought the advice of more-experienced attorneys, even one or two serpents from the defense bar. He also rehearsed his client's testimony in front of a former litigator: San Diego Superior Court Judge Michael I. Greer.

Greer and Frega had met two years earlier when they organized a seminar together. Frega was new in town and looking for a mentor. Greer, a former Assistant U.S. Attorney and civil trial lawyer, liked having an acolyte. They became friendly, and so did their families; the Greers' daughter baby-sat for the Fregas, and the Frega kids swam in the Greers' pool. When Greer's youngest daughter got married, the Fregas gave her a \$1,800 honeymoon cruise. The relationship between the lawyer and the judge was well known around the courthouse.

WHEN MICKEY GREER took the witness stand on September 11, 1996, he testified on behalf of the prosecution. The 62-year-old former judge appeared dazed and ashen. He suffers from diabetes, heart disease, skin cancer, prostate problems, and depression—five good reasons to take the government's offer of no jail time. Without his plea bargain, Greer faced the same racketeering and mail fraud charges as G. Dennis Adams and James Malkus, the two other judges on trial with Frega.

Greer received small presents—a sweater, a golf bag, two new car tires—and much larger gratuities: an

\$830 health club membership; \$17,000 toward a new Saab; and thousands more in car repairs. The gift-giving began in 1983, when Frega provided free legal representation to Greer's wife when she sued an auto mechanic for faulty repairs. That same year Greer presided over a settlement conference in a malpractice suit against Frega.

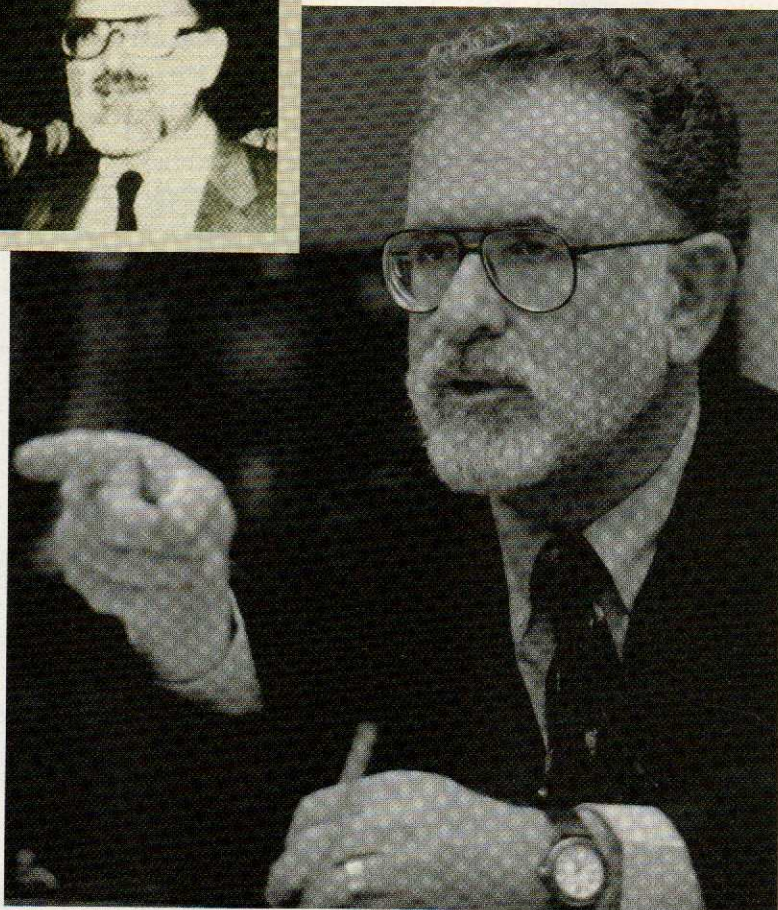
Five other lawsuits brought by the Greer family were handled by Frega, always free of charge. Frega often solicited Greer's opinion on briefs and motions, delivering copies of his rough drafts to Greer's chamber or mailing them to his home. The two men regularly discussed Frega's trial strategies and evidence problems.

Frega was a quick and voracious learner who soon branched out into business law. Some people thought he was in over his head when he represented a group of plaintiffs in a legal malpractice case brought against a law firm. The case involved J. David Dominelli, a bogus currency trader who fleeced hundreds of prominent San Diego investors in a giant Ponzi scheme. Rogers & Wells, a New York-based law firm, had represented the phony investment company. Showing his trademark hubris, Frega paid a jailhouse visit to Dominelli and, in front of a corrections officer, persuaded Dominelli to sign a waiver of his attorney-client privilege.

"Nobody was forcing him to agree," Frega said at the time. "But I reminded him



Left: Judge Michael Greer with Frega in friendlier days. Below: Greer fingered Frega during the racketeering trial.



that under the terms of his plea bargain he agreed to help investors recover their funds." Frega's clients won a \$40 million settlement. The *National Law Journal* covered the case at length, and Frega—one of the first attorneys in town to hire a publicist—was quoted extensively.

Lawyers who know him say Frega would do almost anything to win a case. Frega once described himself as being "way up there" on the aggression scale and admitted to using "commando-type tactics" to win cases. "He was like Sherman marching through Georgia," observes one of his admirers. "He didn't leave a lot of friends at the courthouse." Frega played "Johnny jump up" on a regular basis, concealing his involvement in a case until right before the trial and then substituting himself as the attorney of record. Other attorneys have accused Frega of stalling on discovery motions and slipping in surprise evidence. Frega countered that many of his detractors hated him because "I gave them the worst hit they ever got."

One of his more notable "hits" was against personal injury attorney Sam Spital. In 1986, at a time when most lawyers scorned advertising, Spital spent \$850,000 on campy television commercials; his advertising budget ranked third in the nation among law firms. He dealt in volume, and he had a reputation for settling all his cases for whatever he could get. He wasn't active in the bar and didn't mix much with other lawyers. Worst of all, he was making a lot of money.

Not surprisingly, Spital was the object of much scorn. A videotaped spoof of his commercials was an annual favorite at the San Diego County Bar Association's holiday banquet. Always the eager warrior, Frega put out the word: He was looking for a case to nail Spital.

He found it with a former Spital client, Jerry May, who fell off a scaffold erected by his employer and broke his collarbone. May also suffered from carpal tunnel syndrome. Spital's office negotiated a \$2,000 settlement.

Frega filed a malpractice lawsuit against Spital, and the case went to trial in January 1993. By then Frega had five lawyers working for him, and his office handled 12 to 15 cases at a time. His years of courting the media and his talent for delivering clever quotes paid off. Frega portrayed Spital as the Antichrist of attorneys; the trial garnered lots of publicity, including a regular slot on Court TV.

Frega was good at establishing a rapport with juries, and he captured this one with yarns from Mark Twain and axioms from Socrates. Waving around a three-foot silver sword, Frega asked the jurors to send a message to attorneys who don't deliver on their promises, and to cut out the cancer of malpractice.

The jury awarded \$2.6 million to Jerry May, plus another \$5 million in punitive damages. Sam Spital closed down his law practice and filed for bankruptcy within a year.

"That case was such a long shot for Pat," says a local malpractice attorney who admits he was also looking to sue Spital.



Judge G. Dennis Adams was the first San Diego superior court judge to be removed from office.

"But Frega looked past the compensatories and went after Spital for fraud and misrepresentation. He could get seven-figure awards when there wasn't a settlement offer, not a nickel on the table."

FREGA LIKED to take care of his friends, especially when it came to cars. He referred many people to Rancho Jeep Eagle, a dealership owned by one of his clients. He got deals for people he liked, or wanted to impress, or simply felt sorry for. When his daughter's swim coach had her car stolen, Frega bought her another one. He also helped a secretary purchase a vehicle when she couldn't afford one. Sometimes the dealer discounted repairs or sold the cars at just above cost. Other times Frega chipped in. Often the bills were just charged to his corporate account.

In 1985 Greer took his Chevrolet into Rancho Jeep Eagle for repairs. Greer thought he was overcharged, and he complained to Frega about it. "Next time," Frega said, "go through me." The following year, when Greer said he wanted a Mercedes, Frega asked him what he could afford. Greer told him \$12,000.

"Make a check out for that amount," said Frega, who soon delivered a used Mercedes to Greer. Greer's wife wrote a check for \$12,000 to Frega's wife. Later Greer learned that the car cost \$24,870. "I knew I was in trouble when I took that Mercedes," Greer later testified. "From that point on, I was into a bad time."

Greer continued to preside over settlement conferences involving Frega or members of Frega's law firm. He pressured Frega's opponents to settle, including a couple who backed out of a deal to buy Frega's home in Escondido. In other instances Greer consolidated cases, decided motions, and resolved discovery disputes in cases involving Frega. Opposing counsel often knew of the Greer-Frega friendship but did not challenge decisions or seek recusals. It was that integrity issue

AP Photo, Denis Poroy

again, mixed in with a bit of professional machismo—nobody wanted to be branded a whiner.

Greer made some attempts to keep the appearance of impartiality. In one instance he fined Frega's office \$150 for a late court appearance "as a demonstration of neutrality," according to Greer's testimony. On another occasion Greer angrily pulled Frega aside to scold him during settlement talks in a bad faith insurance case. But it was all an act to get more money from the other side, Greer later said. Frega often told him how much he sought before they went into the settlement conference.

In 1988 Greer was named the presiding judge of the San Diego Superior Court. He was put in charge of the master calendar, where he could accommodate Frega's requests for certain judges. Two of Frega's favorites were Adams and Malkus. They eventually joined him in the federal indictment.

By 1989 FREGA had established an expertise in lender liability, an uncrowded niche in the San Diego market. He also kept his footing in personal injury, a place where sympathetic juries still handed down big awards to plaintiffs. One of his cases involved Sherill Romero, an 18-year-old car passenger who was rendered paraplegic when the driver of the car had an epileptic seizure and collided with another car. Romero sued the driver's neurologist for not properly notifying the Department of Motor Vehicles of his patient's condition.

Frega tried the case in front of a jury, who awarded Romero \$3.1 million. The jury found the driver 95 percent negligent and the neurologist only 5 percent negligent. But the driver had a \$50,000 limit on her insurance policy. The trial judge ruled that the Medical Injury Compensation Reform Act, which limits general damages for pain and suffering in medical malpractice cases to \$250,000, did not apply,

leaving the neurologist responsible for most of the award. The judge also allowed Frega to make an improper argument, which was later used as a basis to overturn the verdict. The judge was James Malkus.

Like Greer and Adams, Malkus had been appointed to the bench by Governor Jerry Brown. He was the best liked of the three judges, the one everybody described as "a really nice guy." People also felt sorry for Malkus; his wife, Marian, was slowly dying of cancer.

Malkus presided over one of the J. David & Co. legal malpractice lawsuits that involved Frega. Frega had free access to the judges' chambers, and prosecutors claimed that he and Greer—who lost \$70,000 to the bogus investment firm—freely discussed case evidence with Malkus during one of the trials.

Frega's special entree continued during the Romero trial. Malkus was now the presiding judge in the

El Cajon branch, where the judges' chambers were grouped together. Malkus's bailiff later testified that he often sneaked Frega into the judges' chambers. By now Frega had already paid \$2,600 for repairs to a Cadillac owned by Marian Malkus. Malkus later contended that much of Frega's largesse was directed toward Marian, and that in many instances it was done without his knowledge. This included gifts and favors for the couple's son, Todd. Frega contributed toward the purchase of a used car for him, and when Todd graduated from college Frega helped get him a job as a private investigator and wrote \$10,000 worth of checks to pay his salary.

San Diego attorney Bob Harrison was ignorant of these details when he faced off against Frega in the Romero case. He was aware of Frega's friendship with Malkus, but it didn't bother him at the time. "I respected Malkus as a judge, and when the rulings didn't go my way I figured we just disagreed," says Harrison, whom the insurance company fired from the case. "Now I'll always question what happened. I guess I'm bitter, and it's directed toward Frega."

Frega went before Malkus again in 1990, this time representing a truck dealership suing Bank of America. By now Frega, Malkus, and Greer were meeting for breakfast on Thursdays at the Mission Valley Marriott. Just before the jury trial began Frega announced in court that he wanted Malkus to decide the issue himself. The bank's attorneys agreed.

In October 1991 Malkus issued a tentative decision that awarded Frega's client \$4 million, including \$750,000 in punitive damages. That same month the state Commission on Judicial Performance began an investigation of the San Diego Superior Court bench. When Malkus became one of the commission's targets, Bank of America asked for a new judge. Malkus swore he had disclosed his relationship with Frega to

Continued on page 78

"TV Sam" Spital: "What goes around comes around."



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Tempting Justice

Continued from page 39

the bank's attorney, although there was no written record of it. He disqualified himself from the case.

Several months before the judicial probe began, Marian Malkus died. Malkus received a private reprimand in December 1992. When the judicial commission quizzed him again in October 1993 about his car transactions with Frega, Malkus decided he had had enough. He abruptly resigned from the bench at age 56, forgoing his full judicial pension.

THE JUDICIAL scandal may not have surfaced if it weren't for a short article in the *San Diego Reader*, an alternative weekly newspaper. In the 1991 story the paper examined the financial disclosure statements filed by all the local superior court judges. The state Commission on Judicial Performance took notice and sent letters to every superior court judge (26 out of a possible 71) who had accepted gratuities from various lawyers over the past few years. The gifts ranged from fishing trips and golf tournament fees to facials and theater tickets.

The probe eventually focused on six judges. Four of them, including Malkus, were reprimanded. Greer resigned. This left only Judge G. Dennis Adams to face the full commission hearings.

Frega first walked into Adams's courtroom in January 1986. Adams later called this moment "the worst thing that's happened to me in my life."

The case involved James Williams, Frega's car dealer friend, who claimed that Security Pacific Bank had caused him to lose two dealerships. It was a complex lender-liability case, and halfway through the trial Adams, with the permission of both parties, dismissed the jury and began hearing the case himself. He issued his ruling three months later. Williams was awarded \$4.8 million; Frega received Outstanding Trial Lawyer of the month from the San Diego Trial Lawyers Association.

Security Pacific appealed the verdict, and Adams kept jurisdiction on the case. After his decision was upheld, Security

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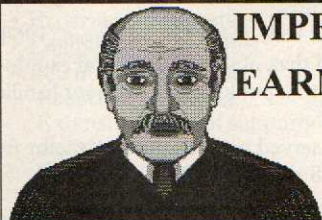
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Pacific paid the judgment, which had grown to \$7.5 million with interest payments. Frega collected \$2 million in attorneys fees and costs. He threw a party to celebrate, and Adams and his wife were among the guests. Frega never appeared again in a trial before Adams, though the judge did preside over a number of settlement conferences involving Frega's firm.

The Adams and Frega families began socializing together. Adams revealed to Frega that he had written a 715-page novel about the German occupation of France. Adams mentioned he was having trouble finding a publisher and thought he needed to spruce up the battle scenes. Frega offered his combat expertise and also hired a Cleveland writer for \$1,500 to work on the book.

In 1990 Adams divorced his wife and was left financially strapped. Frega set him up in an apartment belonging to his brother Nicholas. Frega also furnished it and stocked it with groceries. Later he complained that Adams didn't pay any rent and left the place a mess.

There were cars, too: Frega helped arrange and pay for a Dodge Caravan for Adams's father and a Jeep Cherokee for his daughter. The check for the Jeep Cherokee bore the notation, "*Williams vs. Security Pacific*." Frega often wrote case names on receipts and invoices, leading to the government's contention that he listed the gifts as business expenses or passed the costs on to clients.

Adams later called the car transactions "the stupidest, most boneheaded thing I've ever done." This was during the closed-door hearings held by the judicial commission in November 1993. Adams admitted that he had accepted financial assistance from Frega and his car dealer friend. Adams also admitted that in earlier dealings with the commission he hid the fact that he accepted gifts from several other lawyers who appeared before him.

During the commission's probe Greer remained faithful to Frega, who represented him. But when Frega became a target of the investigation, the commission told Greer to get another lawyer.

In June 1993 Greer resigned from the bench with seven counts of judicial misconduct pending against him. Approximately 300 judges and lawyers gave him a big send-off party. The San

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Diego legal community was in full denial. There was nothing wrong with a few gifts between old friends, said the party line. The three judges were respected men who wouldn't sell their integrity for chump change. Lawyers on the losing end of Frega's cases still maintained they had gotten a fair shake.

Only Adams stuck it out until the bitter end. In 1995 the state Supreme Court voted to remove Adams from the bench, and he became the first superior court judge in San Diego to be ousted from office. That same year the federal investigation began. FBI agents raided Frega's offices and the homes of Greer and Malkus. In January 1996 Greer made a half-hearted attempt to kill himself in a Hemet hotel room. Two months later he blew the case open by pleading guilty to one bribery count. In his plea bargain he admitted to taking \$75,000 in gifts and favors from Frega in exchange for favorable treatment on 40 different cases.

Patrick Frega was arrested the following month. Six FBI agents plucked him off his bicycle one morning near his sister's home. Thirty more agents raided his office and the home of his brother Nicholas, who acted as a funnel for some of Frega's gifts, according to the government. Frega closed down his La Jolla office and dropped out of sight. He and his wife filed for a legal separation, and she and their four children moved to Colorado.

The federal indictment charged Adams, Malkus, and Frega with conspiracy to commit bribery and mail fraud. When the entire federal bench in San Diego recused itself, U.S. District Judge Edward Rafeedie was brought down from Los Angeles to hear the case.

ON THE DAY of opening arguments Rafeedie's courtroom was packed. Sam Spital came early and got a seat in the back row. But he refused to gloat over the fall of his nemesis, although he called the moment "bittersweet." He no longer practices law, he said, and has never really recovered from Frega's legal assault. "What goes around comes around," Spital observed. "Now he has to face the system."

The justice system that Frega now faced was very different from the one he manipulated. As the trial progressed, an unsettling portrait of the San Diego

Superior Court emerged. Ex parte communications were routine, but disclosures were not. The sons and daughters of judges found easy employment at local law firms. Attorney William S. Lerach, who hired Frega to assist on a construction-defect case, admitted that Adams's daughter worked for him while Adams was hearing his case. And neither man had mentioned it to opposing counsel.

Local attorneys followed the testimony with a funereal observance. People who considered themselves insiders were taken aback by Frega's degree of access. "Every day it's like another body blow," said one 20-year trial lawyer.

Frega's defense team—Harold Rosenthal and Dennis Riordan from San Francisco, and C. Bradley Patton from Carlsbad—claimed that Frega was only guilty of unintentional ethics violations. He was generous to a fault, but this didn't account for his success in the courtroom. It came down, they argued, to personal integrity. Rosenthal told the jury that Frega "made some mistakes, and maybe worse, but [he] was not corrupt."

The jury disagreed. After seven days of deliberation Frega was found guilty of two RICO Act violations and mail fraud. Adams and Malkus were found guilty of racketeering conspiracy and mail fraud. About 150 people stood listening in the federal courthouse hallway as the verdicts were read over a squawk box. Inside the cramped courtroom the defendants sat stone-faced while two jurors cried. Adams leaned over the banister and cradled the head of his second wife, Superior Court Judge Barbara Gamer. He and the other defendants remain free, pending sentencing, which is set for next month.

"We take no joy in the outcome," said U.S. Attorney Alan Bersin. Frega's lawyers vowed to appeal. "The [government] never pointed to something that was given in return," said Dennis Riordan.

After the trial Adams and Malkus left with their families. Frega left alone. Television reporters closed in on him, asking for a comment. A camerawoman tripped, and Frega reached out to keep her from falling. He made his way to the curb and was driven away from the courthouse in a black Jeep Cherokee with a Marine Corps bumper sticker. ❖